

COMMITTEE ON JUDICIARY
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2557
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 Strike everything after the enacting clause and insert:

2 "Section 1. Section 12-2293, Arizona Revised Statutes, is amended
3 to read:

4 12-2293. Release of medical records and payment records to
5 patients and health care decision makers;
6 definition

7 A. Except as provided in subsections B and C of this section, on
8 the written request of a patient or the patient's health care decision
9 maker for access to or copies of the patient's medical records and payment
10 records, the health care provider in possession of the MEDICAL RECORD OR
11 PAYMENT record shall provide access to or copies of the MEDICAL RECORDS OR
12 PAYMENT records to the patient or the patient's health care decision maker
13 PROMPTLY AND WITHIN NOT MORE THAN SEVEN CALENDAR DAYS.

14 B. A health care provider may deny a request for access to or
15 copies of medical records or payment records if a health professional
16 determines that either:

17 1. Access by the patient is reasonably likely to endanger the life
18 or physical safety of the patient or another person.

19 2. The MEDICAL RECORDS OR PAYMENT records make reference to a
20 person other than a health professional and access by the patient or the
21 patient's health care decision maker is reasonably likely to cause
22 substantial harm to that other person.

23 3. Access by the patient's health care decision maker is reasonably
24 likely to cause substantial harm to the patient or another person.

25 4. Access by the patient or the patient's health care decision
26 maker would reveal information obtained under a promise of confidentiality

1 with someone other than a health professional and access would be
2 reasonably likely to reveal the source of the information.

3 C. A health care provider may deny a request for access to or
4 copies of medical records or payment records if the health care provider
5 determines that either:

6 1. The information was created or obtained in the course of
7 clinical research and the patient or the patient's health care decision
8 maker agreed to the denial of access when consenting to participate in the
9 research and was informed that the right of access will be reinstated on
10 completion of the research.

11 2. A health care provider is a correctional institution or is
12 acting under the direction of a correctional institution and access by a
13 patient who is an inmate in the correctional institution would jeopardize
14 the health, safety, security, custody or rehabilitation of the patient or
15 other inmates or the safety of any officer, employee or other person at
16 the correctional institution or of a person who is responsible for
17 transporting the inmate.

18 D. If the health care provider denies a request for access to or
19 copies of the medical records or payment records, the health care provider
20 must note this determination in the patient's records and provide to the
21 patient or the patient's health care decision maker a written explanation
22 of the reason for the denial of access. The health care provider must
23 release the medical records or payment records information for which there
24 is not a basis to deny access under subsection B of this section.

25 E. For the purposes of this section, "health professional" has the
26 same meaning prescribed in section 32-3201."

27 Amend title to conform

And, as so amended, it do pass

QUANG H. NGUYEN
CHAIRMAN

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